



DISPOSITION OF CHARGES
PD 468-142A (Rev. 1-06)

CASE NO.	2023-28294
BOOK & PAGE NO.	Page 1 of 1
PERSONNEL ORDER NO.	

SPECIFICATIONS AGAINST RANK/SURNAME Detective Viera,		FIRST Alex	M.I.	COMMAND 77 Precinct
SHIELD NO. 06211	TAX REGISTRY NO. 945080		DATE APPOINTED July 9, 2007	
RANK/NAME OF COMPLAINANT Deputy Chief Prosecutor Andre Applewhite				COMMAND CCRB -Administrative Prosecution Unit
DATE OF CHARGES May 30, 2023		DATE TRIAL COMMENCED November 6, 2024		DATE TRIAL CONCLUDED November 6, 2024
TRIAL COMMISSIONER Honorable Jeff S. Adler				

SPECIFICATIONS	DISPOSITION	RECOMMENDED PENALTY PLEA ☐ TRIAL ☒
1. Detective Alex Viera, on or about January 30, 2022, at approximately 2140 hours, while assigned to the 77 Precinct and on duty, in the vicinity of the 77 Precinct Stationhouse, Kings County, wrongfully used force, in that Detective Viera used physical force against [the complainant] by shoving [the complainant] into a wall without police necessity.	NOT GUILTY	It is recommended that Respondent be found Not Guilty.
2. Detective Alex Viera, on or about January 30, 2022, at approximately 2140 hours, while assigned to the 77 Precinct and on duty, in the vicinity of the 77 Precinct Stationhouse, Kings County, wrongfully used force, in that Detective Viera hit [the complainant's] face against a precinct locker without police necessity.	NOT GUILTY	

Reviewed by Deputy Commissioner of Trials

R. Maldonado
DEPUTY COMMISSIONER

12/11/2024
DATE

Police Commissioner's Approval:

- ☒ Approved
☐ Disapproved
☐ Other Action (Describe)

Jessie Jiser
POLICE COMMISSIONER

1/24/25
DATE



POLICE DEPARTMENT

December 11, 2024

-----X

In the Matter of the Charges and Specifications	:	Case No.
- against -	:	2023-28294
Detective Alex Viera	:	
Tax Registry No. 945080	:	
77 Precinct	:	

-----X

At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Jeff S. Adler
Assistant Deputy Commissioner Trials

APPEARANCES:

For the CCRB: Fredy Kaplan, Esq.
Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

For the Respondent: Marissa Gillespie, Esq.
Karasyk & Moschella, LLP
233 Broadway, Suite 2340
New York, NY 10279

To:

HONORABLE JESSICA S. TISCH
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

CHARGES AND SPECIFICATIONS

1. Detective Alex Viera, on or about January 30, 2022, at approximately 2140 hours, while assigned to the 77 Precinct and on duty, in the vicinity of the 77 Precinct Stationhouse, Kings County, wrongfully used force, in that Detective Viera used physical force against [the complainant] by shoving [the complainant] into a wall without police necessity.

P.G. 221-02, Page 2, Prohibitions 11-12

USE OF FORCE

P.G. 200-02

MISSION, VISION, AND
VALUES OF THE NYPD

2. Detective Alex Viera, on or about January 30, 2022, at approximately 2140 hours, while assigned to the 77 Precinct and on duty, in the vicinity of the 77 Precinct Stationhouse, Kings County, wrongfully used force, in that Detective Viera hit [the complainant's] face against a precinct locker without police necessity.

P.G. 221-02, Page 2, Prohibitions 11-12

USE OF FORCE

P.G. 200-02

MISSION, VISION, AND
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REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on November 6, 2024. Respondent, through his counsel, entered a plea of Not Guilty to the charged misconduct. The complainant did not appear to testify; instead, the CCRB introduced into evidence a prior recorded statement along with additional exhibits. Respondent testified on his own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review. Having evaluated all of the evidence in this matter, I find Respondent Not Guilty.

ANALYSIS

On January 30, 2022, at approximately 1730 hours, Respondent, who was in the rank of Police Officer at the time, arrested an individual ("the complainant") for possession of a loaded

firearm, and transported him to the 77 Precinct in Kings County. It is alleged that inside the stationhouse, Respondent used excessive force in that he twice shoved the handcuffed complainant, once into a metal locker and once against the wall, causing a laceration to his face.

The complainant did not appear to testify. Instead, the CCRB offered into evidence an audio recording and transcript of a video interview they conducted with the complainant while he was in jail on February 25, 2022. (CCRB Exs. 1 & 1A) In the absence of live testimony from the complainant here, this tribunal carefully considered his prior statement, in conjunction with the other evidence presented at trial.

In his interview, the complainant stated that he was arrested by Respondent for possession of a gun, and possibly oxycodone. He was brought to the 77 Precinct and placed in a holding cell, where he was asked to go upstairs to the investigation room to answer questions from a detective. The complainant did not want to be questioned, but Respondent brought him upstairs anyway. When the complainant said he did not want to be there, the detective screamed and cursed at the complainant, and told Respondent to bring him back downstairs. Respondent grabbed the left arm of the complainant, who was handcuffed, and steered him down the hallway toward the staircase; Respondent was squeezing the complainant's arm hard. As they were walking, they exchanged words about what had just occurred with the detective. According to the complainant, Respondent suddenly, and for no reason, slammed him into a metal locker in the hallway, and also pushed him against the wall. The complainant's face and right side made contact with the locker, causing a cut to his face, which the complainant stated required eight stitches to close. Other officers ran to them, and escorted the complainant down to the first floor. The complainant stated that while he was downstairs, he heard Respondent telling other officers that the complainant had been trying to escape, which according to the complainant was a lie.

EMS arrived to treat him, and then the complainant was transported to § 87(2)(b)

(CCRB Ex. 1A at 7-9, 27-32, 36)

A photograph of the complainant from the TRI report (CCRB Ex. 2) shows the laceration and bleeding on the right side of his face, and the complainant's Mugshot Pedigree photographs (CCRB Ex. 3) depict the laceration on his right cheek. In the records from § 87(2)(b)

the complainant states he was assaulted by police, and "sustained a [facial] laceration through the fall;" there was no facial bone deformity noted, and no evidence of a fracture.

(CCRB Ex. 4)

The parties stipulated that the complainant pled guilty to felony gun possession stemming from his arrest in this matter, and has been sentenced to 2-to-4 years in prison. They also stipulated that the complainant has a pending lawsuit against Respondent and the NYPD based on the incident inside the precinct, as reflected in his Summons and Complaint. (Resp. Ex. B)

Respondent, a Public Safety Officer at the time of the incident, testified that he was on patrol when he observed several individuals smoking marijuana inside a laundromat. They appeared to be loitering, and so Respondent and his partner, who were in uniform, entered the location to investigate. One of the individuals inside was the complainant, who was holding a bag in his hand. Respondent made eye contact with the complainant, who then tossed the bag behind the counter. Respondent retrieved the bag, which contained a loaded firearm, and placed the complainant under arrest. (Respondent Ex. A (Arrest Report); Tr. 28-30)

The complainant was transported to the 77 Precinct, where he was processed and placed in a holding cell on the first floor. Respondent testified that the complainant was compliant during their initial interactions, and there were no problems between them. As he was completing his paperwork for the arrest, Respondent received a call from the detective squad,

asking him to bring the complainant up to their office for a debriefing. The complainant told Respondent that he did not want to speak to the detective and wanted an attorney, and Respondent answered that he should say that to the detective when they got upstairs. He then escorted the complainant to the second floor, removed his handcuffs, and placed him alone inside the interrogation room in anticipation of the interview with Detective Gomez. From outside the room, Respondent, who was standing with the detective, could hear the complainant banging on the door and shouting that he wanted to be let out. They opened the door, and the complainant and Detective Gomez proceeded to scream and argue with each other. Respondent intervened, asked if he could bring the complainant back down, and the detective agreed he should do so. (Tr. 30-33, 39-48, 67)

Respondent testified that he rear-cuffed the complainant, gripped his left arm, and began escorting him down the hallway toward the staircase. As they were walking, the complainant, who now was "very agitated" based on his heated argument with Detective Gomez, pulled away from Respondent and screamed at him to keep his hands off. Respondent answered that he had to hold on to him this way. Respondent testified that the complainant, who was wearing a face mask for COVID that had moved up on his face toward his eyes, turned to Respondent to yell at him some more, then abruptly turned away from Respondent again. In doing so, the complainant accidentally banged his face into the edge of a metal locker in the hallway. Respondent insisted that he did not intentionally shove the complainant into the locker or against the wall. According to Respondent, while still in the hallway, the complainant told him he was going to claim that Respondent beat him up and make money off this incident. As they continued walking, Respondent noticed the complainant was bleeding, and so he used the face mask to wipe the

blood off his cheek. Respondent brought the complainant back down to the first floor, called EMS, and notified IAB regarding what transpired.¹ (Tr. 33-38, 49, 53-62, 65)

Two photographs of the hallway, one of which shows the metal locker, were admitted into evidence. (CCRB Exs. 5A & B)

Respondent faces two charges in connection with his interaction with the complainant inside the stationhouse. It is undisputed that the complainant's face collided with the hallway locker, causing a laceration to his cheek; the parties disagree, however, on the details of how the contact with the locker occurred. At issue is whether the record has established, by a preponderance of the credible evidence, that Respondent wrongfully used force against the complainant, in that he hit his face against that locker, in addition to shoving him into a wall.

Since there is no video footage capturing the incident, this tribunal must assess the accounts provided by Respondent and the complainant. Respondent testified in a detailed, logical manner about his interaction with the complainant, and I credit his description of events. Upon arrival at the precinct, Respondent obtained food for the complainant, allowed him to make phone calls, and there were no problems between them. The first difficulties arose when the complainant had an angry verbal exchange with someone else, Detective Gomez. Respondent intervened to end the argument. As Respondent was escorting him from the interrogation room, the complainant was now visibly agitated, and several times pulled away from Respondent. On one such occasion, the complainant turned away and his face collided with the metal locker. I reject any suggestion that Respondent, knowing there were no cameras in the hallway, forcibly hit the complainant's face into the locker, and also shoved him into the wall; Respondent had no

¹ At trial, Respondent could not recall if the complainant's handcuffs became loose as this was happening, though in his IAB interview on March 1, 2022 (*see* Dept. Ex. 6), he told investigators that he noticed the handcuffs were loose and went to secure them, but the complainant pulled away. (Tr. 49-52, 60)

reason to do so, and came across as sincere on the witness stand as he testified that the contact with the locker was inadvertent, not deliberate. Indeed, immediately after the accident, Respondent tried to wipe the bleeding with the complainant's mask, called for EMS, and notified IAB regarding what transpired.

The complainant, in contrast, did not appear to testify, and so the CCRB relied primarily on his hearsay statement, in conjunction with the photographs and medical records introduced into evidence. It is well-settled that hearsay evidence is admissible in administrative proceedings, and may form the sole basis for a finding of fact. The hearsay, however, must be carefully evaluated to determine whether it is sufficiently reliable. It is preferable to have testimony from a live witness, where opposing counsel has the opportunity to cross examine, and the court can observe witness demeanor.

In his hearsay statement, the complainant, who has an active lawsuit against the Department stemming from this incident, claimed that Respondent, for no reason, deliberately slammed him into the locker, and then shoved him into the wall as well. However, since he did not appear at trial, counsel for Respondent did not have the opportunity to cross examine the complainant regarding his description of events. Had the complainant appeared, counsel could have explored with him the impact of the argument with Detective Gomez; in particular, counsel could have asked the complainant about how his anger from that interaction affected his subsequent behavior, including multiple attempts to pull away from Respondent as he was escorting him from the interrogation office. The complainant also could have been asked about how his mask rose up on his face toward his eyes, and whether being handcuffed prevented him from adjusting the mask; if so, did that affect his ability to see the locker as they were walking down the hall? Additionally, since the complainant did not testify, he did not have to answer

pointed questions about whether the contact with the locker occurred inadvertently, when he pulled away from Respondent. After carefully reviewing the complainant's hearsay statement, and considering it in conjunction with the other evidence presented at trial, I reject the complainant's claim that Respondent slammed him into the locker, and separately shoved him into the wall.

Also, as noted above, the parties stipulated that the complainant pled guilty to felony gun possession stemming from his arrest in this matter, and has been sentenced to 2-to-4 years in prison. However, during his CCRB interview, upon which the CCRB relies, the complainant claimed that his arrest was "a frame" by the police; based on the credible evidence, that was a false statement by the complainant, which further adversely affects his credibility. (CCRB Ex. 1A at 9)

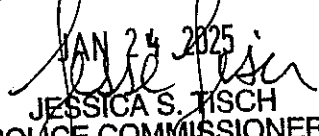
To be sure, it is unfortunate that the complainant sustained a laceration to his face while in police custody. However, that injury occurred through the complainant's own actions, and not through a wrongful use of force by Respondent. The CCRB has failed to meet its burden of proving, by a preponderance of the credible evidence, that Respondent forcibly hit the complainant's face against the locker, or that he forcibly shoved him into a wall. Accordingly, I find Respondent Not Guilty of both specifications.

Respectfully submitted,



Jeff S. Adler
Assistant Deputy Commissioner Trials

APPROVED

JAN 24 2025

JESSICA S. TISCH
POLICE COMMISSIONER



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
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December 10, 2024

Honorable Jessica S. Tisch
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: Detective Alex Viera
Disciplinary Case Nos. 2023-28294

Commissioner:

The above-referenced case was tried on November 6, 2024, by the undersigned, for the New York City Civilian Complaint Review Board (hereinafter "CCRB"), pursuant to the Memorandum of Understanding between the CCRB and the New York City Police Department.

CCRB has reviewed the draft decision of Assistant Deputy Commissioner of Trials ("ADCT"), Jeff S. Adler, dated November 26, 2024. I respectfully submit the following comments regarding that draft decision pursuant to *Fogel v. Board of Education*, 48 A.D.2d 925 (2d Dept. 1975).

Respondent, Detective Alex Viera was charged with the following:

1. Detective Alex Viera, (Police Officer at the time of this incident), on or about January 30, 2022, at approximately 2140 hours, while assigned to 077 PCT and on duty, in the vicinity of the 77th Precinct Stationhouse, Kings County, wrongfully used force, in that DT Viera used physical force against § 87(2)(b) by shoving § 87(2)(b) into a wall without police necessity.

PG 221-02, PAGE 2, Prohibition 11 USE OF FORCE; 221-02, PAGE 2, Prohibition 12; PG 200.02 MISSION, VISION, AND VALUES OF NYPD

2. Detective Alex Viera, (Police Officer at the time of this incident), on or about January 30, 2022, at approximately 2140 hours, while assigned to 077 PCT and on duty, in the vicinity of the 77th Precinct Stationhouse, Kings County, wrongfully used force, in that DT Viera hit § 87(2)(b) face against a precinct locker without police necessity.

The Court found Detective Viera not guilty of Specification One (1) and Specification Two (2).

It is respectfully requested that you reject ADCT Adler's findings and find Respondent Viera guilty of Specification One (1) and Specification Two (2) and accept CCRB's recommended penalty of TEN (10) suspension days and TEN (10) penalty days.

SUMMARY OF THE RELEVANT EVIDENCE AT TRIAL

The relevant evidence introduced at trial by CCRB were CCRB Exhibits 1A, the transcript of § 87(2)(b) interview with CCRB, and Exhibit 1B, the audio said transcript is based on; Exhibit 2, a photo of § 87(2)(b) injury to his face; Exhibit 3, the Central Booking photo of § 87(2)(b) showing the injury to his face; Exhibit 4, § 87(2)(b) medical records; Exhibits 5A and 5B, photos provided by Respondent of the second floor of the 77th precinct showing the precinct lockers; and, Exhibit 6, the redacted IAB case file regarding the Respondent and the herein incident. § 87(2)(b) did not testify in this matter.

In his interview with CCRB, § 87(2)(b) stated that after being in the holding cell for a couple of hours, he requested to use the bathroom. Prior to his request, § 87(2)(b) stated the officers were trying to talk him into going upstairs to the interrogation room. He told the officers he did not want to go upstairs, but after he used the bathroom, the Respondent brought him upstairs anyway. (Exhibit 1A 16). § 87(2)(b) stated that the officers did not tell him why they wanted him to go upstairs. (Exhibit 1A 17). When he got upstairs, § 87(2)(b) said that a person, who turned out to be DT Gomez, came from behind desk and he told DT Gomez that he wants to go, and that he does not want to be there. § 87(2)(b) stated that DT Gomez then started screaming at him, telling him that he will "fuck" him up and other derogatory statements to him. § 87(2)(b) was handcuffed at all times during this confrontation. (Exhibit 1A 19, 20). § 87(2)(b) stated that he told DT Gomez again that he did not want to speak with him, at which point DT Gomez told the Respondent to bring him back downstairs. (Exhibit 1A 26). § 87(2)(b) stated that as the Respondent was escorting him back downstairs, he could feel the Respondent squeezing hard on his arm. Upon reaching the hallway area on the second floor, the Respondent asks § 87(2)(b) why he did that (regarding not cooperating with DT Gomez). § 87(2)(b) stated that in response, he asked the Respondent what he meant given that DT Gomez was just screaming at him and telling him he will fuck him up, at which point the Respondent then slammed § 87(2)(b) two times into a wall. (Exhibit 1A 27). § 87(2)(b) detailed that the Respondent first slammed him into a metal closet (locker), and then slammed him into a wall. (Exhibit 1A 30). § 87(2)(b) stated that the whole right side of his face and body hit the metal locker and then wall. § 87(2)(b) stated that the Respondent still has his grip on § 87(2)(b) left arm when he slammed him into the locker and the wall, and as he was bringing § 87(2)(b) towards the stairway leading back down to the first floor. § 87(2)(b) stated that he believed the Respondent was going to throw him down the stairway, but other officers showed up and escorted § 87(2)(b) back to the holding cell. (Exhibit 1A 32). Upon being placed back into the holding cell, he realized his face was bleeding. The officers gave him a tissue to put on his face. § 87(2)(b) stated that he heard the Respondent tell the other officers present that he tried to flee or escape. (Exhibit 1A 36). § 87(2)(b) stated that

approximately fifteen minutes after being placed in the holding cell, EMS arrived and took him to the hospital. (Exhibit 1A 37). § 87(2)(b) stated he was given stitches to his face at the hospital. (Exhibit 1A 41).

§ 87(2)(b) medical records from § 87(2)(b) indicate that he told the emergency room staff that he was assaulted by police which resulted in the facial laceration on his right cheek. (Exhibit 4, P2).

The IAB report generated as a result of the herein incident did not exonerate the Respondent. Rather, the report concluded that given the lack of BWC or Precinct camera video, and the totality of the circumstances, they were not able to prove or disprove that the Respondent's use of physical force caused injury to § 87(2)(b) (Exhibit 6, P32)

SUMMARY OF RESPONDENT DETECTIVE VIERA'S TESTIMONY

On his direct examination, Respondent testified that when they were back at the 77th Precinct, he did not have any issues with § 87(2)(b) and that he was complacent and cooperative. (Transcript 31). Respondent stated that there came a time that he received a phone call from Detective Gomez requesting Respondent to bring § 87(2)(b) upstairs to the detective's unit for a debriefing. (Transcript *Id.*). Respondent testified that he then rear handcuffed § 87(2)(b) and walked him upstairs to the detective squad. Respondent stated that § 87(2)(b) told him that he did not want to talk to the detectives and informed Respondent that he wanted his lawyer. (Transcript 32). Upon bringing § 87(2)(b) upstairs, Respondent testified that he placed § 87(2)(b) in an interview, and that within a few moments, § 87(2)(b) once again stated that he does not want to talk to them and that he wants to talk to his lawyer. Respondent stated that based on § 87(2)(b) statements that he did not want to speak to the detectives, Detective Gomez got into a heated argument with § 87(2)(b) (Transcript *Id.*). Respondent stated that Detective Gomez told Respondent to bring § 87(2)(b) back downstairs. Respondent testified that he then rear handcuffed § 87(2)(b) and that § 87(2)(b) was compliant, was not fighting nor argumentative with Respondent. Respondent stated that § 87(2)(b) asked him for Detective Gomez's name so he could take a complaint out against him and Respondent stated that he would provide that information to him once returned to the holding cell. (Transcript 33). Respondent testified that he was holding § 87(2)(b) left arm as he was escorting him back downstairs, and upon entering the hallway area, § 87(2)(b) pulled away from him and turned around and walked into the side of the locker. (Transcript *Id.*). Respondent testified that as he was then bringing § 87(2)(b) downstairs to the holding cell, he saw § 87(2)(b) right cheek bleeding. Respondent stated that upon placing § 87(2)(b) back in the holding cell, he requested EMS to come, and then informed his supervisor as to what had occurred, and his supervisor then notified IAB. (Transcript 35).

On cross-examination, Respondent testified that from the time of § 87(2)(b) arrest through the fingerprinting process at the precinct, § 87(2)(b) was compliant, non-resistant and calm. (Transcript 40). Respondent testified that § 87(2)(b) was doing everything the Respondent told him to do. Respondent stated that § 87(2)(b) was in the holding cell for approximately three to four hours before he received the call from Detective Gomez, and during that entire time § 87(2)(b) was calm and compliant. (Transcript 41). Respondent stated that he took § 87(2)(b) to the bathroom several times and each time he was handcuffed when

brought to the bathroom. Respondent stated that § 87(2)(b) was calm and compliant each time he was brought to the bathroom. (Transcript 42). Respondent testified that when he told § 87(2)(b) that he needed to bring him upstairs to the detective's squad, he did not inform § 87(2)(b) that he did not have to go if he did not want to. Respondent stated that § 87(2)(b) then requested a lawyer and in response, Respondent told him to let them know upstairs. (Transcript 43). Respondent conceded in his testimony that he knew § 87(2)(b) did not have to go upstairs if he did not want to but chose not to tell him. (Transcript 44). Respondent testified that he was familiar with the hallway on the second floor of the 77th precinct and is aware there are no station house cameras in that area of the precinct. (Transcript 45). Respondent stated that the interview room he placed § 87(2)(b) in also did not have any stationhouse cameras within. (Transcript 46). Respondent testified that upon being placed inside the interview room, § 87(2)(b) stated he wanted a lawyer. Respondent stated that Detective Gomez then came into the room and got into a heated confrontation with § 87(2)(b) (Transcript 47). Respondent testified that Detective Gomez was very angry and told Respondent to take § 87(2)(b) away. (Transcript 48). Respondent testified that the distance between the interview room and the lockers in the hallway where the incident took place was approximately 80 feet. Respondent testified that during the time that he was escorting § 87(2)(b) from the interview room to the hallway he did not notice if § 87(2)(b) handcuffs were loose, or any other related issues. (Transcript 49). Respondent testified that he did not recall if § 87(2)(b) handcuffs were loose when he was escorting him back to the holding cell, but when confronted with his prior statement to IAB confirming he saw § 87(2)(b) handcuffs getting loose as he was escorting him and stopped in the hallway to fix them, Respondent admitted that he said that. (Transcript 50). Respondent stated that he may have seen that the handcuffs were loose upon leaving the interview room with § 87(2)(b) but chose not to address fixing the handcuffs until they reached the hallway area. (Transcript 52). Respondent stated that he told IAB that § 87(2)(b) walked into the locker intentionally because § 87(2)(b) told him that he's trying to make money off the Respondent. Respondent then testified that he did not tell IAB that § 87(2)(b) told him that he was going to make money off of him, because they never asked him, so he never told them. (Transcript 56). Respondent stated that he never told CCRB either that § 87(2)(b) told him that he was going to make money off of him, and he admitted that today was the first time he was making that statement. (Transcript 57). Respondent stated that once in the hallway, both he and § 87(2)(b) could see the locker in front of them as they walked. (Transcript 58). Respondent testified that without him saying anything to § 87(2)(b) or without touching him, § 87(2)(b) just suddenly pulled away from him and walked into the locker. (Transcript 59). Respondent testified that he did not recall if he told anyone that § 87(2)(b) tried to escape or flee from him. Respondent stated that while he felt § 87(2)(b) was trying to escape, he did not call out for or request any assistance with securing § 87(2)(b) (Transcript 65).

RESPONDENT VIERA IS GUILTY OF WRONGFULLY USING FORCE AGAINST § 87(2)(b) BY HITTING HIS FACE AGAINST A METAL LOCKER AND THEN SHOVING HIM INTO A WALL WITHOUT POLICE NECESSITY

CCRB disagrees with the Tribunal's finding that the injury sustained by § 87(2)(b) occurred through his own actions, and not through wrongful use of force by Respondent . (Draft Decision 9).

The evidence showed that Respondent took § 87(2)(b) upstairs to be questioned by Detective Gomez regardless of the fact that § 87(2)(b) expressed to him several times that he did not want to talk to anyone and stated to Respondent that he wanted to speak to his lawyer. The evidence showed that Respondent never told § 87(2)(b) that he did not have to speak to the detectives if he did not want to. The evidence also showed that Respondent ignored § 87(2)(b) several requests to speak with an attorney. The evidence showed that Detective Gomez was angered when § 87(2)(b) declined to talk to him and verbally confronted him about it. The evidence showed that Respondent then escorted § 87(2)(b) from the interview room and was forcefully squeezing his arm as they walked approximately 80 feet to the hallway area where the metal locker was. The evidence showed that Respondent was aware there were no station house cameras in that area, as well as no witnesses nearby. The evidence showed Respondent asked § 87(2)(b) why he had done that and inquired as to why he declined to speak to Detective Gomez. The evidence showed that § 87(2)(b) explained to Respondent about Detective Gomez confronting and screaming at him. The evidence showed Respondent then became angry and slammed § 87(2)(b) into the metal locker, while still restrained in handcuffs, and then within moments, slammed § 87(2)(b) into a wall. The evidence showed that the medicals corroborated § 87(2)(b) statement that he was assaulted by the police and as a result of the force used, § 87(2)(b) sustained a laceration to the right side of his face and received 8 stitches to said laceration. It is preposterous to conclude that § 87(2)(b) sustained these injuries by his own doing.

The evidence showed that Respondent was telling other police officers present that § 87(2)(b) received the injury as a result of trying to flee or escape from the precinct, and not because he accidentally walked into the locker. The evidence showed that Respondent provided inconsistent statements in that in both of his interviews with IAB and CCRB, he stated that § 87(2)(b) accidentally walked into the metal locker, but when he testified in court, he stated that § 87(2)(b) intentionally walked into the metal locker because he told Respondent he was going to make money off of him. The evidence showed Respondent acknowledged that he never told either IAB or CCRB about this alleged comment § 87(2)(b) stated to him. (Transcript 56). The evidence likewise showed that Respondent acknowledged that the herein trial was the first time he stated § 87(2)(b) intentionally walked into the metal locker. (Transcript 57). The inconsistencies in Respondent's prior sworn statements to IAB and CCRB, and his testimony at trial adversely affect his credibility as to what occurred during the herein incident. The inconsistencies help to further corroborate § 87(2)(b) statement that Respondent shoved and hit him against the locker. Additionally, it defies all logic and common sense that § 87(2)(b) would throw himself against a metal locker thereby causing injury to his face, especially since he was handcuffed with his left arm tightly held by Respondent at the time of the incident.

The Tribunal determined that because during his CCRB interview § 87(2)(b) claimed that his underlying arrest in the herein case was a "frame" by the police, it found that statement to be a false statement which adversely affected § 87(2)(b) credibility. (Decision 9). However, the Tribunal's reference to § 87(2)(b) use of the term "a frame" is without context, and its evaluation of his intention in making the statement is in error. When § 87(2)(b) was asked during his interview with CCRB what he was arrested for, he responded "A frame, I mean they, uh, allegedly they trying to say it was for a gun." (Exhibit 1A 9). He was then asked if he knew the officers who arrested him, and responded that he did not, but that the 77th (PCT) likes to pick on him and harass him. He stated that he had run - ins with them before, so he tries to stay out of their way. (Exhibit 1A *Id.*, 10). Clearly, § 87(2)(b) did not

make any false statements and was merely providing the context along with the facts and circumstances of his arrest that day as best as he could to CCRB.

Lastly, the evidence showed that upon informing his supervisor of the incident, said supervisor requested IAB to investigate. Based on their investigation and interview with Respondent, IAB did not exonerate Respondent from the allegations.

As such, the CCRB proved by a preponderance Respondent is guilty on both charges of wrongfully using force against § 87(2)(b) without police necessity.

CONCLUSION

For all these reasons, CCRB asks you to carefully review the evidence, which strongly supports the finding of guilt on Specification 1 and Specification 2, for Detective Alex Viera, and CCRB recommends the penalty of forfeiture of TEN (10) suspension days and TEN (10) penalty days.

Respectfully submitted,

Fredy H. Kaplan

Fredy H. Kaplan
Prosecutor
Administrative Prosecution Unit
Civilian Complaint Review Board

Cc: Marissa Gillespie, Esq.